



Authority Support Required

1 assets are awaiting your Letters of Administration to finalize ownership. These assets require probate authority to complete the transfer process.

[FINALIZE DOCUMENTS](#)[View Asset List →](#)

Strategic Assessment

Secure, Notify, Preserve • Immediately After Death

Court Compliance & Eligibility

Eligibility, Venue, Parties • Before Court Filing

Petition & Authority

Uncontested: Admin Filing → Letters Same Day • County Surrogate's Court Filing

Asset Discovery

Inventory Due Within 90 Days (N.J.S.A. 3B:15-1) • After Letters Issued

Creditor Claims

6-Month Claim Window – First Publication (N.J.S.A. 3B:22-4) • After First Publication

Asset Liquidation

Power of Sale or Court Confirmation • After Inventory Filed

Final Distribution

Class A: Exempt | Class C/D: Waiver Required • After Tax Waivers Received



Strategic Assessment

CURRENT

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Preliminary Asset & Liability Scan

NEXT STEP

Identify known bank accounts, real estate, and major debts. This data is critical for estimating estate value on the petition and determining bond requirements.



Secure the Property

Change locks, forward mail, and ensure the home is protected from theft or damage.

[Upload Photos](#)

Initial Property Protection

Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.



Notify Social Security Administration

Report the death to stop benefit payments and prevent overpayment recovery.

[Upload Death Certificate](#)[Report Death to SSA](#)

Cancel Credit Cards & Subscriptions

Stop recurring charges and prevent identity theft by closing accounts.

[Manage Accounts](#)

Manage Utilities

Review decedent's utility accounts (electricity, water, gas).



Conduct Genealogical Search

OPTIONAL

If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribution decree.



Locate Important Documents (Intestate)

OPTIONAL

Since there is no Will, search for insurance policies, real estate deeds, and final account statements to inventory the estate.

[Upload Documents](#)

☐ Establish Estate Financial Account

Open a separate fiduciary account for estate income and expenses once legal authority is obtained.

 [Upload Death Certificate](#)

 [Upload Letters of Authority](#)

 [Upload EIN](#)

☐ Managed Payment of Immediate Bills

Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

[Track Bills](#)

☐ Obtain EIN for the Estate

Apply for an Employer Identification Number from the IRS. This unique ID is required to open an estate bank account and for all tax filings.

 [Upload IRS Form SS-4](#)

 [Apply for EIN Online \(IRS\)](#)

☐ File IRS Form 56 (Notice of Fiduciary)

Formally notify the IRS that you have taken on the role of Executor/Administrator. This ensures that all tax correspondence regarding the decedent is sent to you.

 [Upload IRS Form 56](#)

 [Upload Certified Letters of Authority](#)

 [Download IRS Form 56](#)

☐ Confirm U.S. Legal Representative

Decide if you will hire a U.S. probate attorney or appoint a local co-executor/agent to handle on-the-ground tasks.



Verify Notarization Rules (Apostille)

Check if your current country of residence is a member of the Hague Apostille Convention. This determines how documents signed abroad must be authenticated for U.S. court acceptance.



Check HCCH Member States



UPLOAD MISCELLANEOUS



Court Compliance & Eligibility

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Validate Venue and Jurisdiction

Confirm the decedent's legal domicile and county residency to ensure the petition is filed in the legally appropriate court.



Screen Fiduciary Eligibility

Verify that the proposed executor or administrator meets all state-specific legal requirements to serve.



Validate Interested Parties

Identify all individuals legally entitled to notice or inheritance, including heirs-at-law, beneficiaries, and devisees.



Prepare Required Notices and Waivers

Generate the formal notice plan to serve interested parties, or gather Signed Waivers and Consents to expedite the process.



Evaluate Need for Temporary Authority

Determine if preliminary letters or special administration is necessary to protect assets or run a business while formal probate is pending.



Calculate Court Filing Fees

Determine the exact statutory filing fee based on the estimated gross value of the probate estate.

☐ Compile Required Court Form Packet

Synthesize the official local forms and procedural filing notes required by your specific court into a ready-to-file package.

 **UPLOAD MISCELLANEOUS**

☐ Petition & Authority 0/6 **1 ASSET**

☐ File Application for Administration (NJ)

Submit the administration application to the County Surrogate's Court for intestate estates. Bond is typically required unless waived by all heirs.

 Upload Death Certificate

 Upload Administration Application

 Upload Bond or Waiver

 Upload Next of Kin Affidavit

 NJ Surrogate's Court Forms

☐ File Small Estate Affidavit (NJ)

For NJ estates under \$20,000 (or \$50,000 if surviving spouse is sole heir), file a Small Estate Affidavit to collect assets without formal probate.

 Upload Death Certificate

 Upload Small Estate Affidavit Form

 Upload Asset Information

 NJ Small Estate Information

☐ Calculate NJ Bond Amount (Pre-Filing Estimate) **LOCKED**

Estimate the NJ bond amount before filing using the preliminary asset scan. NJ calculates bond on PERSONAL PROPERTY only (not real estate): Bond = Personal Property Value + Estimated Annual Estate Income. This estimate is provided to the Surrogate at filing and can be updated after the formal inventory is completed.

☐ Determine Bond Requirement & Waiver Gate (NJ) **LOCKED**

Determine whether bond is required and whether it can be waived before filing. Two waiver paths: (1) Will waives bond — executor is automatically exempt if the will contains an explicit bond waiver clause; (2) Heir consent — ALL heirs/beneficiaries must sign notarized written consent. If neither path is available, obtain a surety bond before Letters are issued.

**File Bond Waiver Affidavit (If Applicable)** LOCKED

If all heirs/beneficiaries consent to waive bond, file a Bond Waiver Affidavit with the Surrogate's Court. Each heir must sign and notarize their consent.

**Obtain Bond with Surety (If Required)** LOCKED

If bond cannot be waived, obtain a surety bond from a licensed surety company. The bond guarantees faithful performance of fiduciary duties. Premium is paid annually.

**Consider Bond Without Surety (If Applicable)** LOCKED

NJ allows bond without surety (personal obligation only) if the estate is solvent and all beneficiaries consent. This option has no premium cost but exposes the fiduciary to full personal liability.

**Escalate Contested Probate to Superior Court (NJ)**

If the probate is contested, the matter transfers from the County Surrogate to the Superior Court, Chancery Division, Probate Part for litigation.



Upload Complaint/Motion



Upload Supporting Documents

**Determine Power of Sale Authority (NJ)** LOCKED

Review the will and NJ law to determine if you have power of sale for real property without court confirmation, or if court approval is required.

**File Petition for Administration**

Submit the administration petition to the court to open the estate case and request appointment as Administrator (since there is no Will).



Upload Death Certificate



Upload Petition Form

**Pay Court Filing Fee**

LOCKED

Pay the required court filing fee to process the petition. Fees vary by estate value.

**Submit Oath and Designation**

LOCKED

Sign and submit the Oath and Designation form, officially agreeing to serve as the fiduciary.

**Obtain Citation (Contested / Surrogate-Directed Only)**

LOCKED

In NJ, Citation is only issued when the Surrogate determines a hearing is necessary — e.g., contested matter, missing heirs, or waivers not obtained. Standard uncontested Surrogate's Court probate does not require a Citation.

**Serve Citation (Contested / Surrogate-Directed Only)**

LOCKED

Serve the Citation only if the Surrogate issued one. Not required for standard uncontested NJ Surrogate's Court probate.

**Attend Administration Hearing (Contested / Surrogate-Directed Only)**

LOCKED

In NJ, hearings are not required for uncontested Surrogate's Court administration. The Surrogate processes the application administratively. Only attend if the Surrogate schedules a hearing.

**Obtain Letters of Administration (NJ)**

LOCKED

After the County Surrogate approves the administration application, Letters of Administration are issued — typically within a few days of filing for uncontested matters. No hearing is required unless the Surrogate directs one.

**File Small Estate Affidavit**

For estates under threshold, use this shortcut to bypass court probate.



Upload Affidavit Form



Upload Death Certificate

**File Spousal Property Petition**

Request court order to transfer property to surviving spouse without full probate.



Upload Petition Form



Upload Death Certificate

Start Spousal Path



Give Notice of Hearing

OPTIONAL



LOCKED

Notify all interested parties about the court hearing date for the petition.



Obtain Spousal Property Order

OPTIONAL



LOCKED

Receive signed court order confirming property ownership transfer to spouse. Record with county recorder if real estate is involved.



Issue Certificate of Trust

OPTIONAL

Formalize successor trustee authority for trust-held assets.



Upload Trust Agreement



Obtain Business Operating Authority

If the decedent owned a business, you may need a court order to continue operations and pay employees.



UPLOAD MISCELLANEOUS



Asset Discovery

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Letters of Administration required

UPLOAD DOCUMENTS →



Creditor Claims

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FIDUCIARY RISK: Statutory Debt Priority

Assess creditor claims and potential debts under the statutory priority rules applicable in your jurisdiction (often including administration expenses and taxes before unsecured debts).



Publish Notice to Creditors (If Required)

OPTIONAL

If required or strategically beneficial in your jurisdiction, publish a notice to creditors using the court-approved or locally accepted format. Publication rules, timing, and whether it affects creditor deadlines vary by state and county.

 Upload Draft notice text (as applicable)

 Upload Case/filing details (if applicable)



Notify Known Creditors

Notify known creditors as appropriate and document your outreach (e.g., banks, credit cards, medical providers). Requirements and best practices vary by jurisdiction.

 Upload Creditor notice template (if used)

 Upload Creditor contact list / notice log



Evaluate Estate Solvency

Compare total estate assets to total liabilities, taxes, and administration/funeral expenses to determine whether the estate appears solvent or insolvent.



6-Month Claim Window – Triggered by First Publication (N.J.S.A. 3B:22-4)

In New Jersey, creditors have 6 months from the date of the first publication of notice to present claims (N.J.S.A. 3B:22-4). The clock starts from first publication, not from Letters issuance.



Review Submitted Claims

Examine each creditor claim for validity, amount, and supporting documentation.

Review Claims



Document Claim Evaluation & Decision

Evaluate each creditor claim and document your decision (allowed, partially allowed, disputed/rejected) with supporting rationale and evidence. Claims handling procedures vary by state and case type.



Dispute or Reject Claims (If Applicable) LOCKED

If a claim is incorrect, unsupported, or disputed, follow your state's procedure to dispute, reject, or negotiate the claim. Keep written documentation of the basis and supporting evidence.

Action Plan

YOUR COMPLETE 6-PHASE GUIDE

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☐ Document Proof of Creditor Notice (If Applicable)

If your jurisdiction requires proof of creditor notice (publication and/or direct notice), retain and submit the required proof in the format your court or process expects. Even when not required to file, maintaining proof supports a defensible administration record.

 Upload Notice log

 Upload Proof documents (if applicable)

 **UPLOAD MISCELLANEOUS**

☐ Asset Liquidation

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☐ Obtain Court Approval for Minor Distributions

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

☐ Present Letters to All Institutions

Submit certified Letters of Authority to every bank, brokerage, and insurance company.

 Upload Letters of Authority

 Upload Death Certificate

☐ Transfer Financial Accounts LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.

☐ Complete Property Sale & Transfer

If the estate owns real property and a sale is needed, confirm fiduciary authority and any required court authorization in your jurisdiction before signing a contract. Complete closing, deposit proceeds into the estate account, and retain all closing and tax documents.

 Upload Closing statement (HUD-1/CD/ALTA)

 Upload Deed or transfer instrument

 Upload Tax/withholding documents (if any)

Finalize Sale

**File Form 1041 (Fiduciary Income Tax)**

Report income, deductions, and credits for a trust or estate that has gross income of \$600 or more in a tax year.

**Issue Schedule K-1 to Beneficiaries**

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

**Pay Final Taxes** 🕒 Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.

[Upload All Tax Documents](#)**Prepare Final Accounting** 🔒 LOCKED

Document all income, expenses, and distributions for court review.

[UPLOAD MISCELLANEOUS](#)**Final Distribution**

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**Complete liquidation first****VIEW ASSETS** →

ExpectedEstate is not a law firm. We provide recordkeeping tools to help executors document fiduciary actions for attorney review. Use does not create an attorney-client relationship.